



## ANNUAL TOWN MEETING MINUTES MONDAY, MAY 12, 2025 – 7:00 P.M.

Pursuant to the foregoing Warrant, the inhabitants of the Town of Millville, qualified to vote in the Town elections and in Town affairs, met at the Millville Elementary School Auditorium and transacted the following business on May 12, 2025.

Moderator Jackie Lima called the Spring Town Meeting to order at 7:02pm, declaring the presence of a quorum (40 required). Rules for conducting business and taking votes of the meeting were announced.

### **In attendance:**

|                            |                                                                   |                                         |
|----------------------------|-------------------------------------------------------------------|-----------------------------------------|
| <b>Board of Selectman:</b> | <b>Andrew Alward<br/>Joseph Baker<br/>Richard Bremilst</b>        | <b>Jennifer Gill<br/>Matthew Maille</b> |
| <b>Finance Committee:</b>  | <b>Claudette Barrett<br/>Sierra Gallagher<br/>Andrew Boehling</b> | <b>Helge Liedtke<br/>Judy Monroe</b>    |
| <b>Town Administrator:</b> | <b>Peter Caruso</b>                                               | <b>Town Counsel: Brian Riley</b>        |
| <b>Town Clerk:</b>         | <b>Kelly J Cote</b>                                               | <b>Town Moderator: Jackie Lima</b>      |

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### **ARTICLE 1. MONETARY INCREASES**

To see if the Town will vote to authorize that any motion or amendment to increase any monetary articles or line items as recommended by the Finance Committee, presented at this Town Meeting, shall be Out of Order unless such motion or amendment states the source of funding as being from available free cash, or the line item, article, or other funding source that will be reduced by the same amount; or take any other action in relation thereto.

***Submitted by: Finance Committee***

**Explanation:** This article requires that any individual making or amending a motion, which will increase any budget line item that has not been recommended by the Finance Committee, must also provide the source of funding for said increase.

**Selectmen Recommend: 5-0**

**Finance Recommend: 4-0**

***A motion was made and duly seconded that the Town vote that any motion or amendment to increase any monetary articles or line items as recommended by the Finance Committee, presented at this Town Meeting, shall be Out of Order unless such motion or amendment states the source of funding as being from available free cash, or the line item, article, or other funding sources that will be reduced by the same amount.***

***Moderator declared the vote passes.***

## **ARTICLE 2. BILLS OF PRIOR FISCAL YEAR.**

To see if the Town will vote pursuant to G.L. c.44, §64 to raise and appropriate and/or transfer from available funds such sums of money necessary for the purpose of paying outstanding bills from prior fiscal years, and/or take any other action relative thereto.

***Submitted by: Town Accountant***

***Explanation:*** : This article seeks Town Meeting authorization to pay prior years bills; which is required pursuant to M.G.L. c.44, §64. At the time of this writing there are two outstanding bills: one for FY 24 Water Operations services from McClure Engineering: Invoice #20164, dated 8/5/24, in the amount of \$8,775.00, and another for FY 24 Highway Repairs from Milton Cat Invoice #8012862 dated 2/7/24 for \$5,942.52. Funding to come from Free Cash. Passage of this article requires a 4/5<sup>th</sup>'s majority.

**Selectmen Recommend: 5-0**

**Finance Recommend: 4-0**

***A motion was made and duly seconded, pursuant to G.L. Chapter 44, section 64 to transfer from the Free Cash (or General Stabilization Fund) a sum of which is necessary for the purpose of paying the following outstanding bills from prior fiscal years.***

***FY 2024 – McClure Engineering Invoice #20164 - \$8,775.00***

***FY 2024 – Milton Cat Invoice #8012862 - \$5,942.52***

***Moderator declared the vote unanimous.***

## **ARTICLE 3. SNOW AND ICE DEFICIT.**

To see if the Town will vote to transfer and appropriate a sum of monies from the Free Cash or available funds to fund deficits incurred with the Snow/Ice budget per M.G.L. Chapter 44; Section 31D; or take any other action in relation thereto. ***Submitted by: Finance Committee & Highway Surveyor***

***Explanation:*** This annual article seeks a transfer from Free Cash or other available funds, including General Stabilization funds, in order to pay the deficit in the Snow/Ice account, which can be lawfully overspent pursuant to MGL Chapter 44, Section 31D. At the time of this printing the amount is \$127,420.

**Selectmen Recommend: 5-0      Finance Recommend: 4-0      Capital Recommend: 5-0**

***A motion was made and duly seconded that the Town vote to transfer One hundred twenty seven thousand, four hundred twenty dollars (\$127,420) from Free Cash to fund the deficit incurred with the Snow/Ice budget per MGL Chapter 44, Section 31D.***

***Moderator declared the vote unanimous.***

## **ARTICLE 4. HIGHWAY DEPARTMENT – CHAPTER 90.**

To see if the Town will vote to accept and expend such sum or sums of money allotted or to be allotted to the Town from the Commonwealth of Massachusetts under the provisions of M.G.L. Chapter 90 or under any other state roadway reimbursement programs for fiscal year 2025, and to authorize the Board of Selectmen to enter into a contract or contracts with the Massachusetts Department of Transportation Highway Division for such purposes; and, further, to authorize the Treasurer, with the approval of the Board of Selectmen, to borrow in anticipation of 100% reimbursement of said amounts; or to take any other action relative thereto.

***Submitted by: Highway Surveyor & Finance Committee***

***Explanation:*** This is an annual article, which allows the Town to raise and appropriate, borrow, or transfer funds in anticipation of reimbursement revenues from the Commonwealth of Massachusetts for road repair assistance under M.G.L. c.90, said funds not to exceed the Town's apportionment.

**Selectmen Recommend: 5-0**

**Finance Recommend: 4-0**

***A motion was made and duly seconded that the Town vote to accept and expend such sum or sums of money allotted or to be allotted to the Town from the Commonwealth of Massachusetts under the provisions of MGL Chapter 90 or under any other state roadway reimbursement programs for the fiscal year 2026, and to authorize the Board of Selectmen to enter into a contract or contracts with the Massachusetts Department of Transportation Highway Division for such purposes: and, further, to authorize the Treasurer, with the approval of the Board of Selectmen, to borrow in anticipation of 100% reimbursement of said amounts pursuant to MGL 44 or any other enabling authority.***

***Moderator declared the vote unanimous.***

#### **ARTICLE 5. CABLE LICENSE FEES.**

To see if the Town will vote to transfer from the PEG Access and Cable Related Funds account the sum of **Seven Thousand Five Hundred and 00/100 Dollars (\$7,500.00)** to forward to the Superintendent of Schools of the Blackstone-Millville Regional School District for use by the Director of Library and Media Services to enhance the curriculum offerings that are available in the School District; or take any other action in relation thereto. ***Submitted by: Board of Selectmen and Cable Advisory Committee***

***Explanation:*** This is an annual article, which allows the Town to forward a certain sum of money from fees collected pursuant to the Town's Cable Franchise License Agreement with Charter Communications to the Blackstone-Millville Regional School District. A similar arrangement exists with the Town of Blackstone as well.

**Selectmen Recommend: 5-0**

**Finance Recommend: 4-0**

***A motion was made and duly seconded that the Town vote to transfer from the PEG Access and Cable Related Funds account the sum of Seven Thousand Five Hundred and 00/100 Dollars (\$7,500.00) to be forwarded to the Superintendent of Schools of the Blackstone-Millville Regional School District for use by the Director of Library and Media Services to enhance the curriculum offerings that are available in the School District.***

***Moderator declared the vote unanimous.***

#### **ARTICLE 6. Highway and Bridge Stabilization Fund.**

To see if the Town will vote to transfer from any available funds a sum of money to the Highway and Bridge Stabilization Fund; or take any other action relative thereto. ***Submitted by: Highway Surveyor & Board of Selectmen***

***Explanation:*** This article allows for future strategic funding of Roadway and Bridge Projects which have previously been funded out of the operational budget and is part of the Town's continuing goal to manage a Capital Plan and in order to address the numerous Roadway and Bridge capital improvement projects and equipment, which exceed the operating budget. The

plan for this year's Town Meeting is to *take no action* on this article.

**Selectmen Recommend: 5-0    Finance Recommend: 4-0    Capital Recommend: 5-0**

*A motion was made and duly seconded to take no action on this article.*

*Moderator declared the vote unanimous.*

**ARTICLE 7. CAPITAL STABILIZATION FUND.**

To see if the Town will vote to transfer from any available funds a sum of money to the Capital Stabilization Fund; or take any other action relative thereto.

***Submitted by: Finance Committee & Town Administrator***

***Explanation:*** This article allows for future strategic funding of Capital Projects which have previously been funded out of the operational budget and is part of the Town's and its Capital Program Committee's continuing goal to manage a Capital Plan in order to address the numerous capital improvement projects and equipment, which exceed the operating budget. The plan for this year's ATM is to *take no action* as this account is already well funded.

**Selectmen Recommend: 5-0    Finance Recommend: 4-0    Capital Recommend: 5-0**

*A motion was made and duly seconded to take no action on this article.*

*Moderator declared the vote unanimous.*

*The moderator has asked without contest that article 8 be taken up after Article 10. No challenges were brought forward.*

**ARTICLE 8. GENERAL STABILIZATION FUND.**

To see if the Town will vote to transfer from any available funds a sum of money to be placed in the General Stabilization Fund; or take any other action in relation thereto.

***Submitted by: Town Administrator & Finance Committee***

***Explanation:*** This annual article allows for transferring funds into the Stabilization Fund as part of the Town's ongoing goal to build up the Town's financial reserves. The Stabilization Fund is a reserve fund which can be used for catastrophic or emergency events, or when revenue sources are below prior year levels. A majority vote of Town Meeting voters is required to appropriate funds into the Stabilization Fund. The plan for this year's ATM at the time of this writing is to *take no action* on this article.

**Selectmen Recommend: 5-0    Finance Recommend: 4-0    Capital Recommend: 5-0**

*A motion was made and duly seconded to take no action on this article.*

*Moderator declared the vote unanimous.*

**ARTICLE 9. FUND OTHER POST-EMPLOYMENT BENEFITS (OPEB).**

To see if the Town will vote to raise and appropriate or transfer from any available funds a sum of money to the OPEB Liability Trust Fund for the purpose of reducing the unfunded actuarial liability of health care and other post-employment benefits of retired employees; or take any other action in relation thereto. ***Submitted by: Town Administrator & Finance Committee***

***Explanation:*** This article authorizes the Town to partially fund in FY26 the existing OPEB Liability Trust Fund to address the Town's unfunded liability for employee retirement benefits.

The liability at June 30, 2023 was approximately \$241,593 and the Trust Fund had a balance of approximately \$194,305. If the account is not funded, the Town's financial statement may be negatively impacted, possibly affecting the Town's bond rating and future ability to borrow. In addition, absent funding, future taxpayers will suffer the cost burden of OPEB liabilities being created from employee services currently enjoyed by today's taxpayers. The plan for this year's ATM is to *take no action* as the OPEB funding is believed to be sufficient at this time.

**Selectmen Recommend: 5-0**

**Finance Recommend: 4-0**

*A motion was made and duly seconded to take no action on this article.  
Moderator declared the vote unanimous.*

#### **ARTICLE 10. FISCAL YEAR 2026 BUDGET.**

To see if the Town will vote to raise and appropriate, to borrow, or to transfer from available funds such sums of money as may be deemed necessary to defray Town expenses for all departments, including debt and interest and compensation for Town Officers, and to provide for the Reserve Fund for the Fiscal Year beginning July 1, 2025 and ending June 30, 2026; or take any other action in relation thereto. *Submitted by: Finance Committee*

**Explanation:** This annual article provides for all tax-supported Town operations and activities including the operating budgets of the schools and general government. Please see the Fiscal Year 2026 Budget Document. Votes taken by Selectmen and Capital were as of 5/5/25. The deficit at the time of this writing of \$312,767 is planned to be offset at this year's ATM by use of Free Cash and/or Stabilization Funds. Use of Stabilization Funds will require a 2/3rds vote. BOS and FinCom currently consider using Public Safety Stabilization Funds to fund the \$40,000 of ALS charges budgeted but Capital believes these funds should only be used for Public Safety Capital items, not operations. The final funding sources will be identified in the Motion at ATM.

**Selectmen Recommend: 2-3    Finance Recommend: 4-0    Capital Recommend: 4-0**

*A motion was made that the Town vote to appropriate the sum of \$7,746,514.00 as deemed necessary to defray Town expenses for all departments, including debt and interest and compensation for Town Officers, and to provide for Reserve Fund for the Fiscal Year beginning July 1, 2025, and ending June 30, 2026, with such appropriation to be funded as follows: Raise and appropriate the sum of \$7,451,175 and to transfer the sum of \$48,206 from the Septic Title V account, \$207,133 from Free Cash, and \$40,000 from Public Safety Stabilization, for a total of \$7,746,514 as set forth in the budget document presented to Town Meeting.*

*Moderator declares a 2/3rds vote*

*The moderator revisited Article 8*

*A motion was made to transfer the remaining free cash in the amount of \$13,286.00 to General stabilization.  
Moderator declares a unanimous vote.*

#### **ARTICLE 11. BMR OTHER POST EMPLOYMENT BENEFITS**

To see if the Town will raise and appropriate or transfer from available funds the sum of \$24,650 into Other Post-Employment Benefits Liability Trust Fund (OPEB Fund) of the Blackstone-Millville Regional School District established under General Laws Chapter 32B, Section 20, said funds to be used only to pay some portion of health benefits for retirees from the Blackstone-Millville Regional School District or take any other action relative there, too.

*Submitted by: Blackstone Millville Regional District School Committee*

**Explanation:** This article provides for a direct contribution by each town to make a funding contribution to BMR's nearly \$33 Million unfunded liability for health and other retiree benefits earned already by BMR employees but not yet funded. This liability is in addition to other defined BMR employee retirement obligations – approximately \$7 Million to non-teachers directly payable by BMR and approximately \$32 Million for BMR teachers under the Mass Teacher Retirement System paid through State taxes. This article may not be necessary if the omnibus budget Article 10 passes which includes \$24,650 in funding for Millville's share of the \$100,000 contribution to the BMR OPEB Trust Fund.

**Selectmen Recommend: (if needed) 5-0**

**Finance Recommend: (if needed) 4-0**

*A motion was made and duly seconded to take no action on this article.*

*Moderator declared the vote unanimous.*

#### **ARTICLE 12. BMR SCHOOL COMMITTEE STIPENDS**

To see if the town will vote to authorize the members of the Blackstone Millville Regional District School Committee to be compensated for their services as such members and to set the amount of said compensation at \$1,500.00 per member and \$1,800.00 for the chairman, such compensation to be paid in three (3) equal installments in the months of July, November and March provided, however, that no such installment shall be paid a) to a member who is not in attendance at least 60% of the meetings of the District School Committee (excluding, however, any meetings, not attended by such members due to the provisions of Massachusetts General Law Chapter 268A) in the twelve (12) month period prior to July 1, November 1, or March 1, as the case may be, if such a member has been a member for twelve (12) months or more months prior to each of said dates; or b) to a member who has not attended at least 60% of the meetings of the District School Committee (excluding, however, any meetings, not attended by such member due to the provisions of Massachusetts General Law Chapter 268A) in the period prior to each of said dates, or take any other action in relation thereto.

**Submitted by:** *Blackstone Millville Regional District School Committee*

**Explanation from BMR District School Committee:** This article seeks to accept the compensation, as defined, to be provided to members of the Regional School District Committee.

**Selectmen Recommend: 0-5**

**Finance Recommend: 0-4**

*A motion was made and duly seconded that the town vote to authorize the members of the Blackstone Millville Regional District School Committee to be compensated for their services as such members and to set the annual amount of said compensation at One Thousand Five Hundred Dollars (\$1500.00) per member and One Thousand Eight Hundred Dollars (\$1800.00) for the Chairman, as printed in the warrant.*

*Moderator declared the vote passed.*

#### **ARTICLE 13. CABLE APPROPRIATIONS**

To see if the town will vote to appropriate \$37,500 from the Peg Access and Cable Fund available fund balance to fund the cable operation for FY 2026, starting July 1, 2025 through June 30, 2026 under the direction of the Cable Coordinator, said funds to be spent on professional wages in the amount of \$20,000, part time wages \$2,500 and expenses \$15,000.

**Submitted by:** *Town Accountant and Cable Advisory Committee*

**Explanation:** This article appropriates sufficient amounts to fund the operations of the Cable Coordinator and team from funds collected in the Peg Access and Cable Fund pursuant to the

Town's Cable Franchise License Agreement with Charter Communications.

**Selectmen Recommend: 5-0**

**Finance Recommend: 4-0**

*A motion was made that the town vote to appropriate Thirty Seven Thousand Five Hundred Dollars (\$37,500) from the Peg Access and Cable Fund available fund balance to fund the cable operation for FY2026, starting July 1, 2025 through June 30, 2026 under the direction of the Cable Coordinator said funds to be spent on professional wages in the amount of Twenty Thousand Dollars (\$20,000), part time wages Two Thousand Five Hundred Dollars (\$2,500) and expenses Fifteen Thousand Dollars (\$15,000).*

*Moderator declared the vote unanimous*

**ARTICLE 14. Change Highway Surveyor from Elected to Appointed**

To see if the Town will vote pursuant to G.L. c.41, §1B to have its elected Highway Surveyor become an appointed Highway Surveyor, or take any action relative thereto.

**Explanation:** This article seeks to adopt current municipal best practices and apply them to the currently elected Highway Surveyor Role. As explained on the Division of Local Services (DLS) website, municipal positions continue to grow in responsibility and required skillset, such that communities are turning to appointed positions to attract a wider pool of candidates with strong credentials and relevant professional experience. Converting an elected role also provides the opportunity to define job requirements and reporting structure, specifying clear expectations of the position and its relationship with management and other team members. In addition, positions such as this require extensive knowledge and are essential for providing a community's critical operations and services. Subject to voter approval of a ballot question at the Town's next election, this change will go into effect after the current incumbent's term expires.

**Selectmen Recommend: 4-0-1**

*A motion was made and duly seconded that the Town vote pursuant to General Laws Chapter 41, §1B to to have its elected Highway Surveyor become an appointed Highway Surveyor.*

*Moderator declared the vote passes*

**ARTICLE 15: Change Tree Warden from Elected to Appointed**

To see if the Town will vote pursuant to G.L. c.41, §1B to have its elected Tree Warden become an appointed Tree Warden, or take any action relative thereto.

**Explanation:** Like above, this article seeks to adopt current municipal best practices and apply them to the currently elected Tree Warden Role. As explained on the Division of Local Services (DLS) website, municipal positions continue to grow in responsibility and required skillset, such that communities are turning to appointed positions to attract a wider pool of candidates with strong credentials and relevant professional experience. Converting an elected role also provides the opportunity to define job requirements and reporting structure, specifying clear expectations of the position and its relationship with management and other team members. In addition, positions such as this require extensive knowledge and are essential for providing a community's critical operations and services. Subject to voter approval of a ballot question at the Town's next annual election, this change will go into effect after the current incumbent's term expires.

**Selectmen Recommend: 5-0**

*A motion was made and duly seconded that the Town vote pursuant to General Laws Chapter 41,*

*§1B to to have its elected Tree Warden become an appointed Tree Warden*

*Moderator declared the vote passes.*

**ARTICLE 16: Change Fire Chief from Strong Chief**

To see if the Town would vote to rescind the vote taken under Article 21 of the February 8, 1971 Annual Town Meeting accepting the provisions of G.L. c. 48, §§ 42, 43, and 44, the so-called “Strong Fire Chief” statute, and further to accept the provisions of G.L. c. 48, § 42A, or take any other action relative thereto. *Submitted by Board of Selectmen*

**Explanation:** This article rescinds the Town’s prior adoption of the “Strong Fire Chief” statute, which principally allows the Fire Chief full appointing authority over all departmental hires. The statute does require the Fire Chief obtain approval from the Board of Selectmen prior to any changes in personnel compensation. Departmental budgets are also currently subject to voter appropriation regardless of the statute. The only real change is to place authority for appointment of personnel to the Board of Selectmen, as is currently the case with appointments of Police as well as most other Town personnel.

**Selectmen Recommend: 5-0**

*A motion was made and duly seconded that the Town vote to rescind the vote taken under Article 21 of the February 8, 1971 Annual Town Meeting accepting the provisions of G.L. c. 48 §§42, 43, and 44, the so-called “Strong Fire Chief” statute, and further to accept the provisions of G.L. c. 48, § 42A.*

*Moderator declared the vote fails*

**ARTICLE 17: Approval of State Audit of Ambulance Services:**

To see if the Town will vote pursuant to G.L. c. 11, § 12 to raise and appropriate, or transfer from available funds a sum of money for an audit of the Town’s ambulance services by the Office of the State Auditor, or take any other action relative thereto. *Submitted by Board of Selectmen*

**Explanation:** This article provides authority for the Town to engage the State Auditor’s office to perform an audit of transactions related to the proper recognition and validity of revenues and expenses of Millville’s ambulance service operations, including ALS and other mutual aid support and charges. The motion at Town Meeting will include a “not to exceed” cost of \$10,000 as well as a funding source identified from Free Cash or either General Stabilization.

**Selectmen Recommend: 5-0      FinCom Recommend: 4-0      Capital Recommend: 5-0**

*A motion was made and duly seconded that the Town vote pursuant to G.L. c. 11, §12 to transfer from General Stabilization funds no more than \$10,000 for an audit of the Town’s ambulance services by the Office of the State Auditor.*

*Moderator declared a 2/3rds vote*

**ARTICLE 18: Zoning ByLaw Changes – Floodplain Overlay District:**

To see if the town would vote to amend the Millville Zoning Bylaw as noted below.

Move that the Town of Millville accept the amendments to “Article VIII Section 400-37



Floodplain Overlay District” as written below.

## **Article VIII Floodplain Overlay District**

### **§ 100-801 Purpose and administration.**

The purpose of the Floodplain Overlay District is to:

- A) Ensure public safety through reducing the threats to life and personal injury
- B) Eliminate new hazards to emergency response officials
- C) Prevent the occurrence of public emergencies resulting from water quality, contamination, and pollution due to flooding
- D) Avoid the loss of utility services which if damaged by flooding would disrupt or shut down the utility network and impact regions of the community beyond the site of flooding
- E) Eliminate costs associated with the response and cleanup of flooding conditions
- F) Reduce damage to public and private property resulting from flooding waters
- G) Establish uses that are compatible with areas prone to flooding.

The Town of Millville hereby designates the position of Building Commissioner to be the official floodplain administrator for the Town.

### **§ 100-802 District boundaries; base flood elevation and floodway data.**

The Floodplain District is herein established as an overlay district to all other districts. The district includes all special flood hazard areas within the Town of Millville designated as AE on the Worcester County Flood Insurance Rate Map ("FIRM") dated July 4, 2011 issued by the Federal Emergency Management Agency (FEMA) for the administration of the National Flood Insurance Program. The exact boundaries of the district may be defined by the 1%-chance based flood elevations shown on the FIRM, and further defined by the Worcester County Flood Insurance Study (FIS) report dated July 4, 2011. The FIRM and FIS report are incorporated herein by reference and are on file with the Town Clerk, Planning Board, Building Inspector, Board of Health, and Conservation Commission.

### **§ 100-803 Notification of watercourse alteration.**

- A. If the Town acquires data that changes the base flood elevation in the FEMA mapped Special Flood Hazard Areas, the Town will, within 6 months, notify FEMA of these changes by submitting the technical or scientific data that supports the change(s).

Notification shall be submitted to:

- 1. NFIP State Coordinator  
Massachusetts Department of Conservation and Recreation
  - 2. NFIP Program Specialist  
Federal Emergency Management Agency, Region 1
- B. In a riverine situation, the alteration or relocation of a watercourse shall require a special permit in accordance with the terms hereof, in addition to any other permits issued by the Millville Conservation Commission or the Massachusetts Department of Environmental

Protection.

- C. Upon issuing a special permit for any alteration or relocation of a watercourse, the Planning Board shall notify the following entities:
1. Adjacent communities of Uxbridge, MA; Mendon, MA; Blackstone, MA; and North Smithfield, RI
  2. The State of Rhode Island
  3. NFIP State Coordinator  
Massachusetts Department of Conservation and Recreation
  4. NFIP Program Specialist  
Federal Emergency Management Agency, Region 1

#### **§ 100-804 Use regulations.**

- A. Special Permit. Consideration of special permit applications shall be in accordance with § 100-606 of the Millville Zoning Bylaws as well as the following requirements:

1. Requirements.
  - a. The Town of Millville requires a special permit to be issued by the Planning Board for all proposed use, construction, or other development as defined by FEMA in the floodplain overlay district, including, but not limited to,
    - i. new construction or changes to existing buildings,
    - ii. placement of manufactured homes,
    - iii. temporary or permanent structures including fences, sheds, storage facilities, agricultural facilities, play areas,
    - iv. storage of vehicles, including agricultural and recreational vehicles
    - v. and/or drilling, mining, paving and any other development that might increase flooding or adversely impact flood risks to other properties.
  - b. Special considerations.
    - i. In Zone AE, storage of all recreational vehicles to be placed on a site must be elevated and anchored in accordance with the zone's regulations for foundation and elevation requirements or be on the site for less than 180 consecutive days or be fully licensed and highway-ready.
    - ii. In the case of a use not included above, the floodplain administrator will determine whether a special permit is required.
  - c. No special permit may be issued unless the proposed use or structure is in compliance with MGL c. 131, § 40, and with demonstrated evidence of acquisition of and compliance with all other necessary permits as outlined below:
    - i. The section of the Massachusetts State Building Code which addresses floodplain and coastal high-hazard areas (currently 780

CMR 115G, Flood Resistant Construction and Construction in Coastal Dunes), as may be amended. [Amended 5-8-2023 ATM by Art. 20]

- ii. Wetlands Protection Regulations, Department of Environmental Protection (DEP), currently 310 CMR 10.00, as may be amended.
  - iii. Minimum Requirements for the Subsurface Disposal of Sanitary Sewage, DEP, currently 310 CMR 15, Title 5, as may be amended.
  - iv. The Millville Wetlands Protection Bylaw and accompanying regulations, as may be amended. [1] Editor's Note: See Ch. 95, Wetlands.
  - v. Any regulations or bylaws adopted by the Millville Board of Health.
  - vi. All other state and federal permits as required by the Massachusetts Department of Conservation and Recreation, Massachusetts Department of Environmental Protection, Environmental Protection Agency, Federal Emergency Management Agency, and/or other departments and agencies as may be amended.
  - vii. All other local, state, and federal permits that will be necessary in order to carry out the proposed development in the floodplain overlay district.
2. Special Permit Determination. In addition to the foregoing requirements, the Planning Board shall consider the following in determining whether to issue a special permit:
- a. Floodway Encroachment.
    - i. In Zone AE along watercourses that have a regulatory floodway designated within the Town of Millville on the Worcester County Flood Insurance Rate Maps, encroachments are prohibited, including fill, new construction, substantial improvements, and other development within the adopted regulatory floodway unless it has been demonstrated through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that the proposed encroachment would not result in any increase in flood levels within the community during the occurrence of the base flood discharge.
    - ii. In Zone AE, along watercourses that have not had a regulatory floodway designated, the best available federal, state, local, or other floodway data shall be used to prohibit encroachments in floodways which would result in any increase in flood levels within the community during the occurrence of the base flood discharge.

- iii. In A Zones, in the absence of FEMA BFE data and floodway data, the building department will obtain, review, and reasonably utilize base flood elevation and floodway data available from a Federal, State, or other source as criteria for requiring new construction, substantial improvements, or other development in Zone A and as the basis for elevating residential structures to or above base flood level, for floodproofing or elevating nonresidential structures to or above base flood level, and for prohibiting encroachments in floodways.
  - b. Base flood elevation data. Base flood elevation data. When proposing subdivisions or other developments greater than 50 lots or 5 acres (whichever is the lesser), the proponent must provide technical data to determine base flood elevations for each developable parcel shown on the design plans.
  - c. All development proposals, including subdivision proposals, in the floodplain overlay district shall be reviewed to assure that:
    - i. Such proposals minimize flood damage;
    - ii. All public utilities and facilities are located and constructed to minimize or eliminate flood damage; and
    - iii. Adequate drainage is provided.
- 3. All applications for special permits shall include a site and development plan. Said plans shall, at a minimum, show existing contour intervals of site and elevations of existing structures.
- 4. There shall be established a "routing procedure" which will circulate or transmit one copy of the site and development plan to the Conservation Commission, Planning Board, Board of Health, Building Inspector, Town Engineer, Highway Surveyor, Town Clerk, Board of Selectmen and Board of Assessors for comments which will be considered by the Planning Board prior to issuing applicable permits.
- 5. Variances.
  - a. Granting Authority. Any variances from the provisions and requirements of the above-referenced state regulations may only be granted in accordance with the required variance procedures of the State Building Code Appeals Board.
    - i. The Town will request from the State Building Code Appeals Board a written and/or audible copy of the portion of the hearing related to the variance, and will maintain this record in the community's files.

- ii. The Town shall also issue a letter to the property owner regarding potential impacts to the annual premiums for the flood insurance policy covering that property, in writing over the signature of a community official that (i) the issuance of a variance to construct a structure below the base flood level will result in increased premium rates for flood insurance up to amounts as high as \$25 for \$100 of insurance coverage and (ii) such construction below the base flood level increases risks to life and property.
  - iii. Such notification shall be maintained with the record of all variance actions for the referenced development in the floodplain overlay district.
- b. Requirements. A variance from these floodplain bylaws must meet the requirements set out by State law, and may only be granted if:
  - i. Good and sufficient cause and exceptional non-financial hardship exist;
  - ii. the variance will not result in additional threats to public safety, extraordinary public expense, or fraud or victimization of the public; and
  - iii. the variance is the minimum action necessary to afford relief.

## **§ 100-805 Definitions.**

As used in this article, the following terms shall have the meanings indicated:

### **BASE FLOOD**

The flood having a one-percent chance of being equaled or exceeded in any given year.

### **DEVELOPMENT**

Any man-made change to improved or unimproved real estate, including but not limited to building or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials. [US Code of Federal Regulations, Title 44, Part 59]

### **DISTRICT**

The Floodplain District.

### **FLOOD INSURANCE RATE MAP (FIRM)**

An official map of a community on which FEMA has delineated both the areas of special flood hazard and the risk-premium zones applicable to the community.

### **FLOOD INSURANCE STUDY**

An examination, evaluation, and determination of flood hazards, and, if appropriate, corresponding water surface elevations, or an examination, evaluation, and determination of flood-related erosion hazards.

## FLOODWAY

The channel of a river, creek, or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height. [Base Code, Chapter 2, Section 202]

## FUNCTIONALLY DEPENDENT USE

A use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities. [US Code of Federal Regulations, Title 44, Part 59] Also [Referenced Standard ASCE 24-14]

**HIGHEST ADJACENT GRADE** means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure. [US Code of Federal Regulations, Title 44, Part 59]

**HISTORIC STRUCTURE** means any structure that is:

- (a) Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;
  - (b) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;
  - (c) Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or
  - (d) Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:
    - (1) By an approved state program as determined by the Secretary of the Interior or
    - (2) Directly by the Secretary of the Interior in states without approved programs.
- [US Code of Federal Regulations, Title 44, Part 59]

## MANUFACTURED HOME

A structure, transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities. For floodplain management purposes, the term "manufactured home" also includes park trailers, travel trailers, and other similar vehicles placed on a site for greater than 180 consecutive days. For insurance purposes, the term "manufactured home" does not include park trailers, travel trailers, and other similar vehicles.

## MANUFACTURED HOME PARK OR SUBDIVISION

A parcel, or contiguous parcels, of land divided into two or more manufactured home lots for rent or sale.

## NEW CONSTRUCTION

Structures for which the start of construction commenced on or after the effective date of the first floodplain management code, regulation, ordinance, or standard adopted by the authority having jurisdiction, including any subsequent improvements to such structures. New construction includes work determined to be substantial improvement. [Referenced Standard ASCE 24-14]

## ONE-HUNDRED-YEAR FLOOD

See "base flood."

#### RECREATIONAL VEHICLE

A vehicle which is:

- (a) Built on a single chassis;
  - (b) 400 square feet or less when measured at the largest horizontal projection;
  - (c) Designed to be self-propelled or permanently towable by a light duty truck; and
  - (d) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.
- [US Code of Federal Regulations, Title 44, Part 59]

#### REGULATORY FLOODWAY

See "floodway."

#### RIVERINE

Relating to, formed by, or resembling a river (including tributaries), stream, brook, etc.

#### SPECIAL FLOOD HAZARD AREA

The land area subject to flood hazards and shown on a Flood Insurance Rate Map or other flood hazard map as Zone A, AO, A1-30, AE, A99, AH, V, V1-V30, or VE. [Base Code, Chapter 2, Section 202]

#### START OF CONSTRUCTION.

The date of issuance for new construction and substantial improvements to existing structures, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement or other improvement is within 180 days after the date of issuance. The actual start of construction means the first placement of permanent construction of a building (including a manufactured home) on a site, such as the pouring of a slab or footings, installation of pilings or construction of columns. Permanent construction does not include land preparation (such as clearing, excavation, grading or filling), the installation of streets or walkways, excavation for a basement, footings, piers or foundations, the erection of temporary forms or the installation of accessory buildings such as garages or sheds not occupied as dwelling units or not part of the main building. For a substantial improvement, the actual "start of construction" means the first alteration of any wall, ceiling, floor or other structural part of a building, whether or not that alteration affects the external dimensions of the building. [Base Code, Chapter 2, Section 202]

#### STRUCTURE

For floodplain management purposes, a walled and roofed building, including a gas or liquid storage tank, that is principally above ground, as well as a manufactured home. [US Code of Federal Regulations, Title 44, Part 59]

#### SUBSTANTIAL REPAIR OF A FOUNDATION.

When work to repair or replace a foundation results in the repair or replacement of a portion of the foundation with a perimeter along the base of the foundation that equals or exceeds 50% of the perimeter of the base of the foundation measured in linear feet, or repair or replacement of 50% of the piles, columns or piers of a pile, column or pier supported foundation, the building official shall determine it to be substantial repair of a foundation. Applications determined by the building official to constitute substantial repair of a foundation shall require all existing portions of the entire building or structure to meet the requirements of 780 CMR. [As amended

by MA in 9th Edition BC]

## VARIANCE

A grant of relief by a community from the terms of a floodplain management regulation. [US Code of Federal Regulations, Title 44, Part 59]

## VIOLATION

The failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in Section 60.3 is presumed to be in violation until such time as that documentation is provided. [US Code of Federal Regulations, Title 44, Part 59]

### **§ 100-806 Abrogation and greater restriction.**

The floodplain management regulations found in this Floodplain Overlay District section shall take precedence over any less restrictive conflicting local laws, ordinances or codes.

### **§ 100-807 Disclaimer of liability.**

The degree of flood protection required by this bylaw is considered reasonable but does not imply total flood protection.

### **§ 100-808 Severability.**

If any section, provision or portion of this bylaw [ordinance] is deemed to be unconstitutional or invalid by a court, the remainder of the ordinance shall be effective.

***Submitted by Planning Board.***

### **Explanation:**

The purpose of this article is to continue Millville's compliance with the National Flood Insurance Plan (NFIP) so that Millville residents may have continued access to flood insurance options. FEMA has updated its regulations, and therefore the Town must amend its bylaws to remain in compliance. The Massachusetts Department of Conservation and Recreation (DCR) assisted in reviewing Millville's current floodplain bylaws and noting necessary changes based on the updates to FEMA's regulations.

**Selectmen Recommend: 5-0**

**Planning Board: 5-0**

**A motion was made and duly seconded that the town vote to amend the Millville Zoning Bylaws as printed in the warrant for Article 18.**

**Moderator declared the vote unanimous**

## **ARTICLE 19: Adoption of Bylaw Relating to Unclaimed Property**

To see if the Town will vote to accept the provisions of G.L. c. 200A, § 9A, which establishes an alternative procedure for the disposition of abandoned funds held in the custody of the Town, or take any other action relative thereto. ***Submitted by Treasurer/Collector***

### **Explanation:**

The adoption of MGL Chapter 200A Section 9A provides Municipal Treasurers a procedure for



disposing of funds held by the town that are deemed abandoned. There are two major benefits to accepting this statute. The first benefit gives the Town Treasurer an alternative procedure to handle abandoned property or funds, with a possibility that verified abandoned funds can be recovered as revenue to the General Fund. The default rule is that abandoned or unclaimed property is to be turned over to the Office of the [MA] State Treasurer in their Unclaimed Property Division. Adoption of MGL Chapter 200A Section 9A outlines a different procedure for disposing of abandoned funds held in the custody of the Town. This statute is most commonly cited in reference to uncashed expense and payroll checks issued by the Municipality. Through a process commonly called “Tailings” the Municipal Treasurer will make specific efforts to notify the person, corporation, organization or other designated beneficiary who had been approved to receive payment from the Town, but has not yet actually claimed those funds. The claim on those funds can be renewed and payment re-issued to the entitled payee. After specific and diligent efforts (as directed by the statute) have been made to connect the pending payment to the entitled payee, the town may set a deadline beyond which the funds shall not be claimed. After that deadline, the funds which shall remain in the custody of the town may be recorded as Revenue in the General Funds and be made available for appropriation for any other public purpose.

The second benefit of accepting this statute relates to recent legislative changes that affect how Tax Title foreclosure decrees are handled. In February 2025 the MA Department of Revenue issued a Local Finance Opinion (LFPO 2025-1) that Municipalities which have adopted MGL Chapter 200A, Section 9A may be able to retain any unclaimed excess equity on foreclosure decrees when the property has been deemed abandoned. This opinion requires that the city or town has adopted MGL Chapter 200A Sec on 9A and has complied with the notice requirements set forth in this statute. The issues associated with tax foreclosure legislative changes and the procedural challenges arising from the requirements continue to be reviewed and even contested as unfunded mandates. Adopting this statute would give Millville a better stance to recapture some equity after complying with the new regulations, rather than delivering possible unclaimed equity from abandoned properties to the State Unclaimed Property Division.

**Selectmen Recommend: 5-0**

**FinCom Recommend: 4-0**

***A motion was made and duly seconded that the town vote to accept the provisions of G.L. c. 200A, §9A, which establishes an alternative procedure for the disposition of abandoned funds held in the custody of the Town.***

***Moderator declared the vote passes.***

**ARTICLE 20: Amend Town of Millville Bylaws, Chapter 15 – Library.**

To see if the Town will vote to amend the Town Bylaw, Chapter 15, Library, by deleting the first sentence of §15-2 in its entirety and inserting in its place, “Custody and management of the public library, including management of the building and all personal property and equipment but not including real property, shall be vested in a Board of Library Trustees consisting of six members residing in the Town of Millville at the time of their election or appointment to the Board”; and further by deleting §15-6 [“Any building acquired for library purposes shall be used solely for the purpose of a public library, public reading rooms, public lectures, literary or artistic entertainment or other activity or purpose as deemed appropriate by the Board of Trustees.”] in its entirety, or take any action relative thereto. ***Submitted by Board of Selectmen***

**Explanation:** This article allows greater flexibility for the Town regarding the requirement for a “sole-purpose” library building. With the current efforts to repair and reuse the Old Town Hall there have been discussions about the possibilities of incorporating Library operations in the facility. Although at the time of this writing it appears unlikely due to the structural requirements of a Library, which are not incorporated into the Old Town Hall structure, these Bylaw changes will enable some greater options in long term Library facility needs, without impairing Library Trustee authority over Library operations, policies, procedures, and practices.

**Selectmen Recommend: 5-0    Finance Recommend: N/A    Capital Recommend: N/A**

*A motion was made and duly seconded to see if the Town will vote to amend the Town Bylaw, Chapter 15, Library, by deleting the first sentence of §15-2 in its entirety and inserting in its place, “Custody and management of the public library, including management of the building and all personal property and equipment but not including real property, shall be vested in a Board of Library Trustees consisting of six members residing in the Town of Millville at the time of their election or appointment to the Board”; and further by deleting §15-6 [“Any building acquired for library purposes shall be used solely for the purpose of a public library, public reading rooms, public lectures, literary or artistic entertainment or other activity or purpose as deemed appropriate by the Board of Trustees.”] in its entirety*

*Moderator declared the vote fails*

**ARTICLE 21: Authorization for Board of Selectmen BOS to sell a portion of land adjacent to former church property at 13 Lincoln Street to current licensee.**

To see if the Town will vote to authorize the transfer from the board or commission presently having care, custody, management and control of certain real property being portions of town-owned property located off of Chestnut Hill Road and Lincoln Street as shown on the sketch plan, which can be seen at the Millville Town Clerk’s Office, to the Board of Selectmen for purposes of disposition, subject to the requirements of G.L. c. 30B, and any other law or requirement appertaining thereto, and that the Board of Selectmen is thereafter authorized to dispose of such real property, for a sum of not less than \$35,000.00, all on such terms and conditions as the Board of Selectmen may deem to be in the best interests of the Town; or take any action relative thereto. ***Submitted by Board of Selectmen***

**Explanation:** This article authorizes the Board of Selectmen to sell approximately 7,000 square feet of land adjacent to the former St. Augustine’s Church property upon which was constructed paved parking and under which is a portion of the former church’s septic system (the “Over-occupied Parcel”). In the early 1990’s the Town had Authorized the then Board of Selectmen to sell a parcel of over 30,000 square feet to the Church, including the Over-occupied Parcel. There is no record that this transaction took place. The Church did not correct the title defect prior to selling the Church property to a private entity. The Town has entered into a month to month license agreement with certain restrictions to allow the new owners rights to access and use the parcel if and until ownership can be transferred subject to Town Meeting authorization and mutually agreed upon price and terms.

**Selectmen Recommend: 5-0    Finance Recommend: 4-0    Capital Recommend: 5-0**

*A motion was made and duly seconded to see if the Town will vote to authorize the transfer from the board or commission presently having care, custody, management and control of certain real property being portions of town- owned property located off of Chestnut Hill Road and Lincoln Street as shown on the sketch plan, which can be seen at the Millville Town Clerk’s Office, to the Board of Selectmen for purposes of disposition, subject to the requirements of*

*G.L. c. 30B, and any other law or requirement appertaining thereto, and that the Board of Selectmen is thereafter authorized to dispose of such real property, for a sum of not less than \$35,000.00, all on such terms and conditions as the Board of Selectmen may deem to be in the best interests of the Town*

*Moderator declared the vote unanimous*

**ARTICLE 22: Capital Item: Library Upgrades.**

To see if the Town will vote to raise and appropriate, or transfer from available funds, the sum of Fourteen Thousand Five Hundred Dollars (\$14,500.00) for the purpose of repairing the fire alarm system and installing a new carpet at the Library, or take any other action relative thereto.

*Submitted by Library Trustees*

**Explanation:** This article allows for the capital purchase of “bundled” needs to effect necessary repairs to the existing Fire Alarm System, originally installed in the Library in 1986 when it first opened, for a cost of approximately \$7,000 and also allows for replacement of existing carpeting from 1986, which is also original to the building, for a cost of approximately \$7,500. Funding to come from Capital Stabilization Fund.

**Selectmen Recommend: 5-0    Finance Recommend: 4-0    Capital Recommend: 5-0**

*A motion was made to see if the Town will vote to raise and appropriate, or transfer from available funds, the sum of Fourteen Thousand Five Hundred Dollars (\$14,500.00) for the purpose of repairing the fire alarm system and installing a new carpet at the Library.*

*Moderator declared the vote unanimous*

**ARTICLE 23: Capital Item: FWHMS Playground.**

To see if the Town will vote to raise and appropriate, or transfer from available funds, the sum of Seventeen Thousand Two Hundred Fifty-Five Dollars (\$17,255.00) for the purpose of designing, purchasing, and installing a playground at FWH Middle School, or take any other action relative thereto. *Submitted by Blackstone Millville Regional School District*

**Explanation:** This article appropriates Millville’s share of the cost of a new playground to be installed Hartnett Middle School. It will be available for use by all school grades. Installing this playground will have no impact on any long-term facility plans and configurations of the District. Funding to come from Capital Stabilization Fund.

**Selectmen Recommend: 2-3    Finance Recommend: 4-0    Capital Recommend: 5-0**

*A motion was made to see if the Town will vote to raise and appropriate, or transfer from available funds, the sum of Seventeen Thousand Two Hundred Fifty-Five Dollars (\$17,255.00) for the purpose of designing, purchasing, and installing a playground at FWH Middle School*

*Moderator declared the vote passes.*

**ARTICLE 24: Capital Item: BMR Plow/Utility Truck.**

To see if the Town will vote to raise and appropriate, or transfer from available funds, the sum of Twenty-Nine Thousand Five Hundred Eighty Dollars (\$29,580.00) for the purchase of a plow/utility truck for use by the Blackstone-Millville Regional School District, or take any other action relative thereto. *Submitted by Blackstone Millville Regional School District*

**Explanation:** This article appropriates Millville's share of the cost of a new plow/utility truck to replace the existing 2004 F650 that is currently in very poor condition and at the end of its useful life. The truck being replaced has only been used for winter plowing and sanding at the High School and Middle School (District owned facilities). The new truck will have more versatility and utility beyond plowing and will be used District wide at all school facilities. Funding to come from Capital Stabilization Fund.

**Selectmen Recommend: 0-5      Finance Recommend: 4-0      Capital Recommend: 5-0**

***A motion was made to see if the Town will vote to transfer from Capital Stabilization Funds, the sum of Twenty-Nine Thousand Five Hundred Eighty Dollars (\$29,580.00) for the purchase of a plow/utility truck for use by the Blackstone-Millville Regional School District.***

***Moderator declared the vote passes***

**ARTICLE 25: BVT Establishment of Stabilization Account.**

To see if the Town will vote, pursuant to M.G.L. c.71, §16G ½, to approve the establishment of a stabilization account for the Blackstone Valley Vocational Regional School District, consistent with the September 14, 2023 vote of the Blackstone Valley Vocational Regional School District Committee, and the member community of Hopedale, which action will provide additional flexibility with respect to future capital improvements, such account to be expended by a 2/3 vote of Regional School District Committee for any purpose for which regional school districts may borrow money or for such other district purpose as the Massachusetts Commissioner of Elementary and Secondary Education may approve; or take any action relative thereto.

***Submitted by Blackstone Valley Vocational Regional School District***

**Explanation:** This article seeks no fiscal appropriation. The creation of a stabilization account is consistent with standard account classification practices. It provides additional flexibility as encouraged by the Massachusetts Department of Revenue, the Regional District Treasurer, independent auditors, and the Massachusetts Association of Regional Schools organization. The establishment of a stabilization account is a common practice across the Commonwealth's regional school systems. Appropriations into a stabilization fund serve as a form of capital budgeting; the Regional District School Committee does not have the authority to increase or decrease the amount appropriated for the year in which its budget has been approved.

**Selectmen Recommend: 5-0      Finance Recommend: 4-0      Capital Recommend: 5-0**

***A motion was made to see if the Town will vote, pursuant to M.G.L. c.71, §16G ½, to approve the establishment of a stabilization account for the Blackstone Valley Vocational Regional School District, consistent with the September 14, 2023 vote of the Blackstone Valley Vocational Regional School District Committee, and the member community of Hopedale, which action will provide additional flexibility with respect to future capital improvements, such account to be expended by a 2/3 vote of Regional School District Committee for any purpose for which regional school districts may borrow money or for such other district purpose as the Massachusetts Commissioner of Elementary and Secondary Education may approve***

***Moderator declared the vote unanimous.***

**ARTICLE 26: Amend Town of Millville Bylaws, Chapter 20 - Personnel.**

To see if the Town will vote to amend the Town Bylaw, Chapter 20, §20-8. D. Compensation System by replacing the existing Classification and Compensation Plan Effective July 1, 2024 with the following Classification and Compensation Plan Effective July 1, 2025 as follows, or take any

action relative thereto:

CLASSIFICATION and COMPENSATION PLAN  
Effective July 1, 2025

| <u>POSITIONS</u>                                                                                                                                           | <u>GRADE</u> | <u>MINIMUM</u> | <u>MEDIUM</u> | <u>MAXIMUM</u> |
|------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|----------------|---------------|----------------|
| Highway Laborer                                                                                                                                            | 1            | \$18.00/hr     | \$22.00/hr    | \$26.00/hr     |
| Library Assistant<br>Clerical Worker<br>Janitor<br>Camera Operator<br>Van Driver                                                                           | 1            | \$15.00/hr     | \$16.45/hr    | \$17.05/hr     |
| Outreach Worker<br>Custodian<br>Cable Access Coordinator                                                                                                   | 2            | \$15.00/hr     | \$18.28/hr    | \$20.70/hr     |
| Executive Assistant *<br>Assistant Town Clerk<br>Highway Assistant<br>Building Assistant                                                                   | 3            | \$17.05/hr     | \$20.70/hr    | \$24.37/hr     |
| Assistant Collector<br>Assistant Assessor<br>Town Planner<br>Librarian<br>Senior Center Director<br>Deputy Fire Chief (non-bargaining unit employees only) | 4            | \$19.50/hr     | \$23.15/hr    | \$26.80/hr     |
| Building Commissioner - PT                                                                                                                                 | 5            | \$32.78/hr.    | \$38.24/hr.   | \$43.71/hr.    |
| Town Accountant - FT<br>(Salary – 30 hrs/wk)                                                                                                               | 6            | \$41,523/yr    | \$49,172/yr   | \$56,822/yr    |
| Treasurer/Collector - FT<br>(Salary - 30 hrs/wk)                                                                                                           | 7            | \$45,895/yr    | \$52,451/yr   | \$60,100/yr    |
| Fire Chief - PT<br>(Employment Contract)                                                                                                                   |              |                |               |                |
| Town Administrator -<br>(Employment Contract)                                                                                                              |              |                |               |                |
| Police Chief -<br>(Employment Contract)                                                                                                                    |              |                |               |                |

\* Business Office, Board of Health, Town Hall, Communications

*Submitted by Board of Selectmen*

**Explanation:** This article provides for Bylaw updates to the existing Classification and Compensation Plan needed. The updates reflect the most recent Plan amounts adjusted for subsequent annual increases and/or budgeted amounts appropriated.

**Selectmen Recommend: 5-0**

**Finance Recommend: 4-0**

*A motion was made and duly seconded that the Town vote to amend the Town Bylaw, Chapter 20, §20-8. D. Compensation System by replacing the existing Classification and Compensation Plan Effective July 1, 2024 with the Classification and Compensation Plan Effective July 1, 2025 as printed in the warrant.*

*Moderator declared the vote unanimous.*

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*All Articles having been acted upon a motion was made to dissolve the meeting.  
The motion was seconded Moderator declares a Unanimous vote, motion carries.  
The Meeting adjourned at 9:23pm.*

*A true copy attest,*



**Kelly J. Cote, CMC**  
**Millville Town Clerk**